

NON-DISCLOSURE AGREEMENT (NDA)

1. Purpose

This Non-Disclosure Agreement ("Agreement") is entered into between **ABC Pvt. Ltd.** ("Disclosing Party") and **XYZ Innovations Pvt. Ltd.** ("Receiving Party").

The purpose of this Agreement is to protect confidential business, financial, and technical information exchanged during discussions related to a strategic technology partnership.

2. Confidential Information

Confidential Information includes all business strategies, software source code, customer information, financial statements, research documents, trade secrets, marketing plans, and technical documentation disclosed in written, electronic, or verbal form.

3. Obligations of Receiving Party

The Receiving Party agrees to:

- Maintain strict confidentiality.
 - Use the Confidential Information solely for evaluating the partnership.
 - Restrict disclosure to authorized employees and consultants.
 - Implement reasonable security measures to prevent unauthorized access.
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4. Exclusions

Confidential Information does not include information that:

- Is publicly available.
 - Was already lawfully known.
 - Is independently developed without reference to Confidential Information.
 - Is disclosed pursuant to a valid court order.
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5. Term

This Agreement shall remain effective for **three (3) years** from the Effective Date.

Confidentiality obligations shall continue for **three (3) years** after termination.

6. Termination

Either party may terminate this Agreement by providing **sixty (60) days prior written notice**.

Upon termination, all Confidential Information shall be permanently deleted or returned within **15 business days**.

7. Intellectual Property

All intellectual property remains the exclusive property of the Disclosing Party.

No license or ownership rights are granted under this Agreement.

8. Liability

Each party's liability under this Agreement shall be **limited to ₹5,00,000 (Five Lakhs INR)**.

Neither party shall be liable for indirect, consequential, incidental, or punitive damages.

9. Indemnification

The Receiving Party agrees to indemnify the Disclosing Party against claims arising from unauthorized disclosure caused by negligence or willful misconduct.

10. Non-Compete

The Receiving Party agrees **not to compete for twelve (12) months** after termination of this Agreement in any directly competing business involving the confidential project.

11. Governing Law

This Agreement shall be governed by the laws of **Singapore**.

All disputes shall be resolved through arbitration in **Singapore**.

12. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior understandings.

13. Amendments

No amendment shall be effective unless made in writing and signed by both parties.

14. Signatures

ABC Pvt. Ltd.

Authorized Signatory

XYZ Innovations Pvt. Ltd.

Authorized Signatory